

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0004467

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: SARA CHEZKIAN

vs.

DEFENDANT: DANIEL L. DAMATO

NATURE OF PROCEEDINGS: 1) MOTION – SET ASIDE/VACATE
2) MOTION – RELIEVE COUNSEL

RULING

There are two motions on calendar.

I. Motion to be Relieved as Counsel

Counsel for Plaintiff Sara Chezgian, Benjamin Graves, Esq. files a Motion to be Relieved as Counsel. The court has reviewed the declaration in support of the motion filed by Mr. Graves. The motion is unopposed and it is GRANTED.

II. Motion to Set Aside and Vacate Judgment

Plaintiff Chezgian prevailed after a trial on the merits on February 24, 2026, with this Court issued a Judgment After Trial for \$267,400.00, and awarded pretrial interest of \$72,732.80 for a final judgment amount of \$340,132.80. Plaintiff filed a post-trial Motion for Recovery of Attorney's Fees and costs on March 2, 2026. The court granted the request, awarding plaintiff \$116,206.03 as recoverable litigation fees and costs.

The court minutes indicate the trial began at 10 am in department L on February 24, 2026, and concluded at 3 pm. A total of 3 witnesses were called. At the conclusion of trial, the plaintiff presented a demand for damages and the court awarded \$267,000.

Plaintiff argues in her motion to set aside the judgment that Mr. Graves attempted to coerce Plaintiff into accepting a settlement of approximately \$140,000 on the eve of trial. On this record, the issue of what occurred on the eve of trial is moot because the Plaintiff was awarded \$267,000 after a full presentation of evidence by both parties.

The court awarded damages after a presentation of evidence, and awarded the Plaintiff \$267,000. After the trial, the court also awarded pre-trial interest of \$72,732.80, and trial cost recovery of \$116,206.03. The total awarded to Plaintiff is \$455,938.

Plaintiff's request to set aside the judgment is DENIED.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005986

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MIRIAM GOLDSTEIN	
vs.	
DEFENDANT: JON GOLDSTEIN	

NATURE OF PROCEEDINGS: MOTION – PRO HAC VICE

RULING

On April 30, 2026, Plaintiff Miriam Goldstein filed a Notice of Application to appear *Pro Hac Vice*. The application explains that applicant Evan I. Cohen, Esq. is an attorney in good standing in the State of Connecticut and other jurisdictions, is not a member of the State Bar of California, and is not regularly engaged in business or the practice of law in California. He has been retained to represent Plaintiff Miriam Goldstein in this action.

Defendant has not filed a response, nor was an opposition to the application been filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Plaintiff's application is therefore GRANTED in it's entirety. Plaintiff to prepare the order.

Welcome.

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IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If